

2017 P L C 90

[Lahore High Court]

Before Jawad Hassan, J

HAQ BAHU SUGAR MILLS (PVT.) LTD.

Versus

PUNJAB LABOUR COURT NO.4, FAISALABAD and others

Writ Petition No.24561 of 2015, decided on 6th March, 2017.

Punjab Industrial Relations Act (XIX of 2010)---

---Ss. 33 & 47---Grievance petition---Stay of proceedings---Scope---Labour Court adjourned contempt petition sine die in view of filing of review petition before the Supreme Court---Validity---Contempt petition had been adjourned sine die merely on the statement of respondent--Respondent had failed to show any stay order in the review petition filed in the Supreme Court--Proceedings of any lis could not be adjourned for indefinite period merely for the reason that review had been filed in the Supreme Court---Impugned order passed by the Labour Court was set aside---Labour Court was directed to decide the pending petition within a period of three months---Constitutional petition was allowed in circumstances.

Pakistan Telecommunication Employees Trust (PTET) through M.D. Islamabad and others v. Muhammad Arif and others 2015 PLC (C.S.) 1417 ref.

Abdul Rauf for Petitioner.

ORDER

JAWAD HASSAN, J.--- From the record, it transpired that after filing of the writ petition and after proper notice to Respondent No.2, he only appeared on 26.02.2016 and sought time to prepare his case. After that, on 05.12.2016, the Petitioner filed an application seeking early fixation of the case and the case was fixed for 16.01.2017. On the said date, the Court clearly stated that in case Respondent No.2 did not appear, the matter shall be decided after hearing the Petitioner and perusal of the record; however, notices were again issued to Respondent No.2 for today but he has failed to tender his appearance hence he is proceeded against ex-parte.

2. Through this petition, the Petitioner has prayed for setting aside the order dated 24.06.2015, passed by Respondent No.1/Punjab Labour Court No.4, Faisalabad (Camp at Jhang).

3. Learned counsel for the Petitioner has stated that the order impugned dated 24.06.2015 be set aside on the ground that mere statement of Respondent No.2 that he has moved a review

petition before the august Supreme Court of Pakistan the case cannot be adjourned sine die; that even Respondent No.2 did not mention the number of the review petition and the date when the review petition was filed; that the Hon'ble Supreme Court of Pakistan has allowed the Civil Petition No.2187-L of 2014 vide order dated 05.05.2015 and converted the same into appeal and set aside the orders of the Courts below; that the order for adjourning the case sine die is against the due process of Article 10-A of the Constitution of Islamic Republic of Pakistan, 1973 because the application has to be decided after hearing the parties; that nevertheless, the petition filed by Respondent No.2 before the learned Labour Court is not maintainable because the Appellate Tribunal has the power under section 47(8) of the Punjab Industrial Relations Act, 2010 and not the Labour Court under section 33(8) of the said Act, 2010, therefore, the order impugned passed by the learned Labour Court may be set aside. Learned counsel has placed reliance on the case titled Pakistan Telecommunication Employees Trust (PTET) through M.D. Islamabad and others v. Muhammad Arif and others (2015 PLC (C.S.) 1417).

4. The record reveals that vide the impugned order dated 24.06.2015 the Respondent No.1 adjourned sine die the contempt petition filed by the Respondent No.2. The contention of the learned counsel for the Petitioner is that neither the Respondent No.2 has produced any proof of review petition before the Respondent No.1 nor has shown any stay order in the review petition allegedly filed before the Hon'ble Supreme Court of Pakistan, therefore, the proceedings cannot be adjourned sine die. There is nothing on record to rebut the contention of the learned counsel for the Petitioner.

5. The impugned order reveals that mere on the statement of the Respondent No.2 the petition has been adjourned sine die vide the impugned order. Even if it is presumed to be filed, even then the Respondent No.2 has failed to show any stay order in the allegedly filed review petition, therefore, for an indefinite period the proceedings of any lis cannot be adjourned. It is well-established principle of law that mere filing of a Review Petition before the Hon'ble Supreme Court of Pakistan does not amount to stay any proceedings or adjourned the same sine die which is pending adjudication before any Court of law.

6. In view of above, the instant petition is accepted and the impugned order dated 24.06.2015 passed by the Respondent No.1 is set aside. The Respondent No.1 is directed to decide the pending petition of the Respondent No.2 within a period of three months positively.

ZC/H-6/L

Petition allowed.